

FIRST ENDORSEMENT

Chief Prosecutor Andre Applewhite, Civilian Complaint Review Board to Deputy Commissioner Paul M. Gamble, Sr., Department Advocate's Office, September 24, 2024. Contents noted. Recommend approval of the negotiated plea agreement in DADS No. 2023-29416 against Police Officer Joseph Perfetto, Tax Registry No. 949473. This case was conferenced on September 17, 2024, before Assistant Deputy Commissioner of Trials Anne Stone, who approved the negotiated penalty of the total forfeiture of twenty (20) vacation days, after a guilty plea.

Andre Applewhite

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Chief Prosecutor
New York City Civilian Complaint Review Board



DISPOSITION OF CHARGES
PD 468-142(Rev. 8-89)-2

CASE NO. 2023-29416
BOOK & PAGE NO. Page 1 of 2
PERSONNEL ORDER NO.

RANK/TITLE PO	SURNAME, PERFETTO	FIRST JOSEPH	M.I. C	COMMAND 121 PRECINCT
SHIELD NO. 3325	TAX REGISTRY NO. 949473	SOCIAL SECURITY NO.	DATE APPOINTED 07/06/2010	
RANK/NAME OF COMPLAINANT				COMMAND
DATE OF CHARGES		DATE TRIAL COMMENCED		DATE TRIAL CONCLUDED
TRIAL COMMISSIONER				

SPECIFICATION	DISPOSITION	RECOMMENDED PENALTY PLEA [X] TRIAL []
1 . Police Officer Joseph Perfetto, on or about July 28, 2022, at approximately 1620, while assigned to the 121st Precinct and on duty, in the vicinity of Van Name Avenue and Richmond Terrace, Richmond County, abused his authority as a member of the New York City Police Department, in that he frisked § 87(2)(b) without sufficient legal authority.	PLEADED GUILTY	VACATION DAYS 20.00 - It is recommended that the Respondent forfeit the amount of vacation days as indicated.
2 . Police Officer Joseph Perfetto, on or about July 28, 2022, at approximately 1620, while assigned to the 121st Precinct and on duty, in the vicinity of Van Name Avenue and Richmond Terrace, Richmond County, abused his authority as a member of the New York City Police Department, in that he searched § 87(2)(b) without sufficient legal authority.	PLEADED GUILTY	
3 . Police Officer Joseph Perfetto, on or about July 28, 2022, at approximately 1620, while assigned to the 121st Precinct and on duty, in the vicinity of Van Name Avenue and Richmond Terrace, Richmond County, abused his authority as a member of the New York City Police Department, in that he failed to provide § 87(2)(b) with a business card.	PLEADED GUILTY	
4 . Police Officer Joseph Perfetto, on or about December 20, 2022, at approximately 1042, while assigned to the 121st Precinct, in the vicinity of 100 Church Street, New York	PLEADED GUILTY	

DC Buzio 10/24/24

FIRST DEPUTY COMMISSIONER DATE

POLICE COMMISSIONER'S APPROVAL

- ☒ Approved
☐ Disapproved
☐ Other Action (Describe)

Thomas DeSantis 11/1/24

POLICE COMMISSIONER DATE



DISPOSITION OF CHARGES
PD 468-142(Rev. 8-89)-2

CASE NO.
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BOOK & PAGE NO.
Page 2 of 2

PERSONNEL ORDER NO.

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TRIAL COMMISSIONER				
SPECIFICATION		DISPOSITION		RECOMMENDED PENALTY PLEA [X] TRIAL []
County, provided a misleading official statement to CCRB regarding the frisk and search of § 87(2)(b) that Police Officer Perfetto conducted on July 28, 2022.				

DC Burtio *10/24/24*
FIRST DEPUTY COMMISSIONER DATE

POLICE COMMISSIONER'S APPROVAL

- ☒ Approved
- ☐ Disapproved
- ☐ Other Action (Describe)

Thomas De Santis *11/1/24*
POLICE COMMISSIONER DATE

THIRD ENDORSEMENT

First Deputy Commissioner to Police Commissioner October 24, 2024. Contents noted. I reviewed the negotiated plea in Disciplinary Case No. 2023-29416 against Police Officer Joseph Perfetto, Tax No. 949473, with the recommendation that Police Officer Perfetto forfeit twenty (20) vacation days. Assistant Deputy Commissioner, Trials Anne E. Stone reviewed this case and made a favorable recommendation pertaining to the proposed settlement; I concur. **RECOMMEND APPROVAL.**

TIK/jpc



Tania I. Kinsella
FIRST DEPUTY COMMISSIONER

APPROVED



NOV 8 1 2024
THOMAS G. DONLON
POLICE COMMISSIONER